

The Challenges of Using AI Tools to Generate Code

Enterprises must understand the obligations that underline OSS licences and adopt proactive measures to meet them while using AI-generated code. Otherwise, they may end up in legal entanglements.

Artificial intelligence, is a technique used to train machines to work and behave like humans. It encompasses various training methods and software like machine learning, neural network and deep learning, natural language processing, and more.

As the field of artificial intelligence (AI) advances, generative AI (GAI) techniques are gaining enormous attention for their ability to generate code and provide suggestions based on prompts that are provided by developers, thereby accelerating the software development process.

These AI models are typically trained on billions of lines of code, most of which are open and freely available to the public. Based on the developers' prompts, these AI tools generate a fully functional code or code snippets.

With the rise in the use of AI tools and developers utilising them to generate creative outputs, GAI will fundamentally change the way that software is built. Whether they are developing or using AI tools, organisations must understand the opportunities and risks involved, and evolve policies, processes, and governance to address them. This includes open source software codes.

A glimpse of open source software licences

Open source software (OSS) has become a major pillar of modern software development, fostering collaboration and innovation. With the increase in the availability of generative AI models, it has become essential to address the complexities of the code governed by open source licences.

The OSS licence allows users to access, use, modify, distribute, or redistribute the open source software. However, many OSS licences impose different obligations and conditions on the use and distribution of the software. These can range from providing attribution to specifying that the OSS modified code must be released under the same licence.

Failure to comply with these obligations can result in IP infringement, which may result in litigation and the loss of right to use the open source software.

OSS compliance issues with AI generated code

The legal concerns arising from AI-based code generator tools are caused by the processing of publicly available OSS code to train the AI